

Karam Ali v. State of U.P. — disputed bill relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 1 February 2021 · WRIT-C No. 2667 of 2021 · WRIT - C No. - 2667 of 2021 · **Writ disposed; petitioner relegated to clause 6.5 objections; restoration to be considered on 33% deposit.**

HEADNOTE

A Division Bench disposed of a writ challenging an electricity assessment and seeking restoration after a disconnection notice for arrears, without examining the bill. Liberty was given to file objections to the assessment before the competent authority under the clause 6.5 pathway within two weeks, to be decided by a reasoned speaking order preferably within six weeks. Restoration of supply is to be considered forthwith if 33% of the demanded amount is deposited.

FACTUAL SUMMARY

Karam Ali held a 10.50 H.P. connection for an atta chakki which, he said, had not run since 2017. On 6 February 2018 the distribution licensee issued a disconnection notice for arrears of Rs 1,89,686. He claimed payment of dues up to 2016, sought an amended bill after adjusting deposits and surcharge exemption, and asked for restoration. The licensee maintained that Rs 2,83,396 was correctly due and that clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 was the statutory remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-writ-relegated-to-clause-6.5

HOLDING

On a writ challenging the correctness of an electricity assessment and seeking restoration after disconnection for arrears, the Court will not keep the petition pending and will relegate the consumer to file objections to the assessment before the competent authority under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, to be decided by a reasoned speaking order; restoration of supply is to be considered forthwith if 33% of the demanded amount is deposited. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ against the correctness of an electricity assessment and for restoration after a disconnection notice for arrears was disposed of by relegating the consumer to clause 6.5 objections before the competent authority. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The licensee's plea that clause 6.5 is the statutory, alternative and efficacious remedy against the correctness of an electricity bill was given effect by liberty to object to the assessment rather than a merits decision on the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY ASSESSMENT, SURCHARGE EXEMPTION, AND ADJUSTMENT OF DEPOSITS

The Court did not examine whether Rs 2,83,396 was due or whether deposits to 2016 and surcharge exemption had to be given. ¶ 1